

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAVID HEYLIGER,

Plaintiff,

- against -

THE CITY OF NEW YORK, JOSEPH RIVERA,
and MARK TUFANO,

Defendants.
-----X

Index No.

Plaintiff designates
New York County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
1775 York Avenue (#4-H)
New York, N.Y. 10128

County of New York

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 10, 2014

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
DAVID HEYLIGER
Office & P.O. Address
11 Park Place, 10th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
Joseph Rivera, c/o: 25th Pct., 120 East 119th St, New York, N.Y. 10035
Mark Tufano, c/o: 25th Pct., 120 East 119th St., New York, N.Y. 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAVID HEYLIGER,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, JOSEPH RIVERA
and MARK TUFANO,

Defendants.

-----X

Plaintiff, complaining of the defendants, by his
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That, at all times hereinafter mentioned, and on
November 30, 2012, the plaintiff, **DAVID HEYLIGER**, was and still is
a resident of the County of New York, City and State of New
York.

2. That, at all times hereinafter mentioned, and on
November 30, 2012 the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of the
laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
November 30, 2012 the defendant, **JOSEPH RIVERA**, (hereinafter

referred to as "**RIVERA**"), was and still is a resident of the City and State of New York.

4. That, at all times hereinafter mentioned, and on November 30, 2012 the defendant, **MARK TUFANO**, (hereinafter referred to as "**TUFANO**"), was and still is a resident of the City and State of New York.

5. That, the plaintiff, **DAVID HEYLIGER**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim and Supplemental Notice of Claim were served on February 14, 2013 and February 4, 2014, respectively, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **DAVID HEYLIGER**, testified at an oral examination pursuant to the General Municipal Law on February 10, 2014; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That on November 30, 2012 the plaintiff, **DAVID HEYLIGER** was in front of premises known as 450 East 117th Street, in the County of New York, City and State of New York.

7. The Plaintiff, **DAVID HEYLIGER**, walked outside and was approached by police officers, agents, servants and or employees

8. That, the Plaintiff, **DAVID HEYLIGER**, was returning from work at approximately 9:30PM.

9. That, the plaintiff, **DAVID HEYLIGER**, was approached by two police officers, and/or other agents, servants, and/or other employees of the defendant and/or defendants herein.

10. That, the aforementioned police officers, agents, servants, and/or employees of the defendant and/or defendants herein were exiting from unmarked vehicle, at or near the intersection of East 117th Street and Pleasant Avenue, in the County of New York, City and State of New York.

11. That, the aforementioned Police Officers and/or agents, servants, and/or employees of the defendant and/or defendants herein stopped and questioned the plaintiff, **DAVID HEYLIGER**.

12. That, the plaintiff, **DAVID HEYLIGER**, had raised his hand and attempted to his identification to the aforementioned Police Officers and/or agents, servants, and/or employees of the defendant and/or defendants herein.

13. That, the defendant and/or defendants herein had attacked and threw the plaintiff, **DAVID HEYLIGER**, to the ground.

14. That, the defendant and/or defendants herein had kicked and punched the plaintiff, **DAVID HEYLIGER** for approximately

four to five minutes.

15. That, the plaintiff, **DAVID HEYLIGER** was never read his Miranda Rights, or told of his legal rights by the defendant and/or defendants herein.

16. That, the plaintiff, **DAVID HEYLIGER's**, eyes were swollen shut, and was caused to have scrapes on his face, knees and back pain due to the conduct of the defendant and/or defendants herein.

17. The Plaintiff, **DAVID HEYLIGER**, was taken by the defendant and/or defendants to a police precinct and the hospital.

18. The plaintiff, **DAVID HEYLIGER**, was taken by the defendant and/or defendants to Central Booking.

19. The plaintiff, **DAVID HEYLIGER**, was thereafter seen by a judge.

20. The Plaintiff, **DAVID HEYLIGER** was caused to appear in Court on several occasions.

21. All charges against the plaintiff, **DAVID HEYLIGER**, were ultimately dismissed on January 21, 2014.

22. That, on November 30, 2012, the plaintiff, **DAVID HEYLIGER**, was assaulted /battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

23. That, the plaintiff, **DAVID HEYLIGER**, was assaulted/battered without justification and without cause and without excuse.

24. That, the assault/battery took place in front of premises known as 450 East 117th Street, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **DAVID HEYLIGER** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

25. That, at all times hereinafter mentioned and on November 30, 2012 and for sometime prior thereto, defendant, **RIVERA**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

26. That, at all times hereinafter mentioned and on November 30, 2012 and for sometime prior thereto, defendant, **TUFANO**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

27. That, the aforementioned assault and battery of the plaintiff, **DAVID HEYLIGER**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

28. That, by reason of the foregoing, the plaintiff, **DAVID HEYLIGER**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

29. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

30. That, by reason of the foregoing, the plaintiff, **DAVID HEYLIGER**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

31. That, the plaintiff, **DAVID HEYLIGER**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 30 with the same force and effect as if hereinafter more fully set forth at length herein.

32. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence,

recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

33. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **RIVERA**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

35. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **TUFANO**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

36. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers,

agents, servants, and/or other employees, including, but not limited to defendant, **RIVERA**, who was employed by the defendant, **THE CITY**.

37. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **TUFANO**, who was employed by the defendant, **THE CITY**.

38. That, by reason of the foregoing, the plaintiff, **DAVID HEYLIGER**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

39. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

40. That, by reason of the foregoing, the plaintiff, **DAVID HEYLIGER**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

41. That the plaintiff, **DAVID HEYLIGER** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 40 with the same force and effect as if hereinafter more fully set forth at length herein.

42. That, on November 30, 2012, the plaintiff, **DAVID HEYLIGER**, was caused to be falsely arrested and falsely imprisoned without probable cause.

43. That, the plaintiff, **DAVID HEYLIGER** , was arrested without an arrest warrant.

44. That, the false arrest/false imprisonment took place in front of premises 450 East 117th Street, in the County of New York, City and State of New York, and other locations and wherein the plaintiff, **DAVID HEYLIGER** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

45. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID HEYLIGER**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

46. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID HEYLIGER**, was carried out by

defendant, **RIVERA**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

47. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID HEYLIGER**, was carried out by defendant, **TUFANO**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

48. That, by reason of the foregoing, the plaintiff, **DAVID HEYLIGER**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

49. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

50. That, by reason of the foregoing, the plaintiff, **DAVID HEYLIGER**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

51. The plaintiff, **DAVID HEYLIGER**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 50 with the same force and effect as if hereinafter more fully set forth at length herein.

52. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID HEYLIGER**, was caused due to a malicious prosecution of the plaintiff, **DAVID HEYLIGER**, without cause, without reasonable cause, and without color of the law.

53. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other employees of the defendant, **THE CITY**, failed to make a proper and through investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **DAVID HEYLIGER**, was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

54. That, upon information and belief, all criminal charges against the plaintiff, **DAVID HEYLIGER**, were ultimately dismissed on January 21, 2014, in the County of New York, City and State of New York, before Judge L. Peterson under docket Number 2012NY090888.

55. That, by reason of the foregoing, the plaintiff, **DAVID HEYLIGER**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

56. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

57. That, by reason of the foregoing, the plaintiff, **DAVID HEYLIGER**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

58. The plaintiff, **DAVID HEYLIGER**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 57, with the same force and effect as if hereinafter more fully set forth at length herein.

59. That the plaintiff, **DAVID HEYLIGER** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered,

excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

60. That at all times hereinafter mentioned, the defendant, **RIVERA**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

61. That at all times hereinafter mentioned, the defendant, **TUFANO**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

62. Defendants, **RIVERA**, and **TUFANO**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the

defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

63. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **DAVID HEYLIGER** of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York: The right of plaintiff, **DAVID HEYLIGER** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **DAVID HEYLIGER**, to be informed of the nature and cause of the accusation against him as secured to his under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **DAVID HEYLIGER**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

64. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

65. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

66. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

67. That the deprivation of plaintiff, **DAVID HEYLIGER** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

68. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

69. That the detaining of plaintiff, **DAVID HEYLIGER** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

70. That the deprivation of plaintiff, **DAVID HEYLIGER** Constitutional Rights was the result of the defendant, **RIVERA'S** arrest of the plaintiff **DAVID HEYLIGER** without probable cause.

71. That the deprivation of plaintiff, **DAVID HEYLIGER'S** Constitutional Rights was the result of the defendant, **TUFANO'S** arrest of the plaintiff **DAVID HEYLIGER** without probable cause.

72. That the deprivation of plaintiff, **DAVID HEYLIGER's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

73. That the deprivation of plaintiff, **DAVID HEYLIGER's** Constitutional Rights was the result of **RIVERA's** use of excessive force.

74. That the deprivation of plaintiff, **DAVID HEYLIGER's** Constitutional Rights was the result of **TUFANO's** use of excessive force.

75. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **DAVID HEYLIGER.**

76. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious as well as prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **DAVID HEYLIGER** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and

Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

77. That, by reason of the foregoing, the plaintiff **DAVID HEYLIGER** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

78. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

79. That, by reason of the foregoing, the plaintiff, **DAVID HEYLIGER**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **DAVID HEYLIGER**, demands judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
February 10, 2014

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
DAVID HEYLIGER
Office & P.O. Address
11 Park Place, 10th Floor
New York, New York 10007
(212) 227-8865

DP

Check Applicable Box
☐ Attorney's Certification
☐ Attorney's Verification by Affirmation
I certify that the annexed has been compared by me with the original and found to be a true and complete copy thereof.
say that: I am the attorney of record, or of counsel with the attorney(s) of record, for . I have read the annexed know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following.
The reason I make this affirmation instead of is
I affirm that the foregoing statements are true under penalties of perjury.
Dated: _____ (Print signer's name below signature)

STATE OF NEW YORK, COUNTY OF New York
David Heyliger being sworn says: I am the Plaintiff
in the action herein; I have read the annexed Complaint
know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.
the of
a corporation, one of the parties to the action; I have read the annexed know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.
My belief, as to those matters therein not stated upon knowledge, is based upon the following:

Check Applicable Box
☒ Individual Verification
☐ Corporate Verification
Sworn to before me on February 10, 20 14
David Heyliger (Print signer's name below signature)

STATE OF NEW YORK, COUNTY OF
age and reside at On , 20 , I served a true copy of the annexed in the following manner:

Check Applicable Box
☐ Service by Mail
☐ Personal Service
☐ Service by Facsimile
☐ Service by Electronic Means
☐ Overnight Delivery Service
by mailing the same in a sealed envelope, with postage prepaid thereon, in a post-office or official depository of the U.S. Postal Service, addressed to the address of the addressee(s) indicated below, which has been designated for service by the addressee(s) or, if no such address has been designated, is the last-known address of the addressee(s):
by delivering the same personally to the persons at the address indicated below:
by transmitting the same to the attorney by facsimile transmission to the facsimile telephone number designated by the attorney for that purpose. In doing so, I received a signal from the equipment of the attorney served indicating that the transmission was received, and mailed a copy of same to that attorney, in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service, addressed to the address of the addressee(s) as indicated below, which has been designated for service by the addressee(s) or, if no such address has been designated, is the last-known address of the addressee(s):
by transmitting the same to the attorney by electronic means upon the party's written consent. In doing so, I indicated in the subject matter heading that the matter being transmitted electronically is related to a court proceeding:
by depositing the same with an overnight delivery service in a wrapper properly addressed, the address having been designated by the addressee(s) for that purpose or, if none is designated, to the last-known address of addressee(s). Said delivery was made prior to the latest time designated by the overnight delivery service for overnight delivery. The address and delivery service are indicated below:

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DAVID HEYLIGER,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOSEPH RIVERA, and MARK TUFANO,

Defendants.

SUMMONS AND COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Office and Post Office Address, Telephone

11 PARK PLACE, 10TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: 2/10/14

Signature _____

Print Signer's Name Joel Schmelkin

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐

NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____ 20 _____, at _____ M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Office and Post Office Address, Telephone

11 PARK PLACE, 10TH FLOOR

NEW YORK, N.Y. 10007

To: